

**JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
FAR PART 6**

Identification Number (purchase request/solicitation number): D-25-ST-0134

1. Identification of the agency and contracting activity.

- A. Agency:** Drug Enforcement Administration (DEA)
- B. Contracting activity:** Office of Acquisition and Relocation Management (FA)
- C. Requiring activity:** Office of Investigative Technology - STSC

2. Nature and/or description of the action being approved. (e.g., new contract award or modification expanding the scope of an existing contract)

DEA-FA intends to issue a sole source, Firm-Fixed Price (FFP) contract to NIC4. This request is for Mobile Subscriber Satellite Radio users to access NIC4 services for contingency operations and emergency tactical communications.

3. A description of the supplies or services required to meet the agency's needs, including the estimated value. (inclusive of all options)

As a result of the lack of interoperability among federal law enforcement agencies during the events of 9/11, the Department of Justice (DOJ) was mandated to develop and implement solutions to address these critical communication gaps. To meet this mandate, the NIC4 Satellite Mutual Aid Radio Talk-Groups (SMART) system was introduced. SMART provides an essential capability for interoperable communication, ensuring seamless coordination among all SMART users. Additionally, the system operates effectively in areas where terrestrial infrastructure is unavailable, further demonstrating its critical role in supporting federal law enforcement operations in diverse and challenging environments.

The service will provide access to Network Innovations satellite resources, access to the Satellite Mutual Aid Radio Talk-group (SMART), instantaneous Push-to-Talk contingency/emergency communication, and operational communications in areas absent of terrestrial infrastructure. SMART Talk-Groups enable interoperability between Federal, State and Local law enforcement officers and emergency responders. SMART Talk-Groups provide One-to-One or One-to-Many communications.

Total estimated value: [REDACTED]	Period of performance or final delivery date: 23 MAR 2025 - 22 MAR 2026
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4. An identification of the statutory authority permitting other than full and open competition.

Check the appropriate box. Only one box may be checked.

- ☒ [41 U.S.C. 3304\(a\)\(1\)](#) and [FAR 6.302-1](#)
"Only one responsible source and no other supplies or services will satisfy agency requirements"
- ☐ [41 U.S.C. 3304\(a\)\(2\)](#) and [FAR 6.302-2](#)
"Unusual and compelling urgency"
- ☐ [41 U.S.C. 3304\(a\)\(3\)](#) and [FAR 6.302-3](#)
"Industrial mobilization; engineering, developmental, or research capability; or expert services"
- ☐ [41 U.S.C. 3304\(a\)\(4\)](#) and [FAR 6.302-4](#)
"International agreement"

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- ☐ [41 U.S.C. 3304\(a\)\(5\)](#) and [FAR 6.302-5](#)
"Authorized or required by statute"
- ☐ [41 U.S.C. 3304\(a\)\(6\)](#) and [FAR 6.302-6](#)
"National security"
- ☐ [41 U.S.C. 3304\(a\)\(7\)](#) and [FAR 6.302-7](#)
"Public interest"

5. A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

At the current time, due to the proprietary NIC4 SMART Talk-Groups, NIC4 is the only vendor that can provide this capability to meet the government's needs. Additionally, NIC4 is the only vendor that offers the SMART Talk-Group resources allowing access to the network and infrastructure.

Furthermore, transitioning to another vendor would result in substantial duplication of costs, including: the need for new software or hardware development to replace the existing proprietary systems, extensive re-training of personnel to operate alternative systems, procurement of licensing or technology rights for equivalent systems, if available. This duplication of costs would not be recoverable and would significantly exceed the costs of awarding to NIC4 without causing delays that are mission critical.

6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by [Subpart 5.2](#) and, if not, which exception under [5.202](#) applies.

The requirement was synopsized by posting a special notice via SAM.GOV.

7. A determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

Government will determine costs fair and reasonable per FAR 13.106-3(a)(2)

8. A description of the market research conducted (see [Part 10](#)) and the results or a statement of the reason market research was not conducted.

The Government performed online research to find additional vendors for the purchase of SMART Talk-Group network access or similar/comparable capabilities and found no other capabilities exist.

The Government also issued a special notice on SAM.GOV to seek vendors with capabilities.

To date, NIC4 is the only vendor capable to provide service linked to current operative equipment that still uphold current technology advancement and capabilities in meeting the Government's requirement without incurring unacceptable costs and delays.

9. Any other facts supporting the use of other than full and open competition, such as:

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- i. **Explanation of why technical data packages, specifications, engineering descriptions, statements of work, or purchase descriptions suitable for full and open competition have not been developed or are not available.**

NIC4 maintains sole proprietary ownership.

- ii. **When 41 U.S.C. 3304(a)(1) is cited for follow-on acquisitions as described in [6.302-1\(a\)\(2\)\(ii\)](#), an estimate of the cost to the Government that would be duplicated and how the estimate was derived.**

N/A

- iii. **When [6.302-2](#) is cited, data, estimated cost, or other rationale as to the extent and nature of the harm to the Government.**

N/A

10. A listing of the sources, if any, that expressed, in writing, an interest in the acquisition.

[REDACTED]

11. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.

Currently, the only course of action to overcome barriers to competition is if NIC4 sells its proprietary rights to another entity. Market research is continuously performed to discover new developments that are cost effective to meet the Government's need in order to promote competition. Currently, there is no other vendor capable to provide or meet the Government's need.

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CERTIFICATIONS

- ☒ I hereby certify that I have no financial interests of the sort addressed in [subpart D](#) of 5 CFR § 2635 that may give the appearance of a conflict of interest in regards to this Justification.
- ☒ I hereby certify that I have no personal or business relationships or interests of the sort addressed in [5 CFR § 2635.502](#) that may give the appearance of a conflict of interest in regards to this Justification.

Requesting Official

Signature & Title _____

"I hereby certify that the description of the requirement meets the Government's minimum needs and that the technical data and supporting information, which form the basis for this Justification for Other than Full and Open Competition, are accurate and complete to the best of my knowledge and belief."

- ☒ I hereby certify that I have no financial interests of the sort addressed in [subpart D](#) of 5 CFR § 2635 that may give the appearance of a conflict of interest in regards to this Justification.
- ☒ I hereby certify that I have no personal or business relationships or interests of the sort addressed in [5 CFR § 2635.502](#) that may give the appearance of a conflict of interest in regards to this Justification.

Requesting Office

Technical Point of Contact

Signature & Title _____

Date _____

"I hereby certify that this Justification for Other than Full and Open Competition is accurate and complete to the best of my knowledge and belief."

Contract Specialist

Signature _____

Date _____

Contracting Officer


Signature _____

Date _____

"I have reviewed the subject contract action and find it legally sufficient for award."

CC Legal Counsel
(if over \$750,000)

Signature

Date _____

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REVIEWS AND APPROVALS

Competition Advocate (if over \$750,000)	_____ Signature	Date _____
Chief, FAC (if over \$750,000)	_____ Signature	Date _____
Bureau Procurement Chief (if over \$750,000 per JAR 2806.304)	_____ Signature	Date _____
Head of the Contracting Activity (if over \$15M)	_____ Signature	Date _____
Senior Procurement Executive (if over \$75M)	_____ Signature	Date _____